



Template notice. Bracketed values [] are the deal-specific terms to set before signing. This is a standard-form agreement and should be reviewed by your counsel before use.

This Broker / Independent Sales Organization Agreement (the "**Agreement**") is entered into as of _____ (the "**Effective Date**") by and between:

COMPANY / FUNDER Delt Capital ("Company")

COMPANY ADDRESS _____

BROKER / ISO _____

BROKER ENTITY TYPE _____

BROKER ADDRESS _____

BROKER CONTACT / EMAIL _____

Company and Broker are each a "**Party**" and together the "**Parties**." Company is engaged in providing merchant cash advances, revenue-based financing, and related commercial funding products (each, a "**Transaction**") to businesses (each, a "**Merchant**"). Broker is engaged in referring Merchants to funding sources. The Parties agree as follows.

1. APPOINTMENT & RELATIONSHIP

1.1 Non-exclusive appointment. Company appoints Broker as a non-exclusive referral source to submit Merchant applications to Company for potential funding. Broker is free to submit deals to other funders, and Company is free to accept deals from other brokers.

1.2 Independent contractor. Broker is an independent contractor. Nothing herein creates an employment, partnership, joint venture, or agency relationship. Broker has no authority to bind Company, quote final terms, approve funding, or make representations on Company's behalf. Broker is solely responsible for its own personnel, expenses, and taxes, and will be issued an IRS Form 1099 for commissions paid.

1.3 Sole discretion. Company underwrites, approves, prices, and funds each Transaction in its sole and absolute discretion. Company is under no obligation to fund any Merchant referred by Broker.

2. BROKER RESPONSIBILITIES

1. Submit complete, accurate application packages, including the Company's submission form and all supporting documents.
2. Obtain from each Merchant and owner all authorizations required for Company to obtain credit reports, verify bank activity, and process the application, and retain evidence of such authorizations.
3. Present Company's products truthfully and never guarantee approval, amounts, rates, or terms.
4. Not collect any upfront fee from a Merchant on Company's behalf, and not alter, add to, or misstate Company's terms.
5. Comply with all applicable laws (Section 8) and cooperate with Company's compliance and verification requests.

3. COMPANY RESPONSIBILITIES

1. Review submitted applications and communicate approval decisions and offer terms to Broker in a commercially reasonable timeframe.
2. Fund approved Transactions in accordance with its agreements with the Merchant.
3. Calculate and pay Commissions earned by Broker in accordance with Section 4 and Exhibit A.
4. Provide Broker reasonable reporting on the status and funded amount of Broker's submitted deals.

4. COMMISSIONS & COMPENSATION

4.1 Commission. For each Transaction that Company funds from a Merchant referred by Broker, Company shall pay Broker a commission (the "**Commission**") calculated as set forth in the Commission Schedule (**Exhibit A**). Commission is expressed in "**Points**," where one (1) Point equals one percent (1%) of the gross amount actually disbursed to the Merchant (the "**Funded Amount**").

HOW COMMISSION IS EARNED — THE STANDARD STRUCTURE

Base points. Broker earns a base Commission of [8] - [12] Points of the Funded Amount per Transaction, per Exhibit A.

Upsell on the spread. Where Broker arranges a factor rate above Company's approved "buy rate," Broker earns additional Commission equal to [50] % of the resulting spread, credited as additional Points.

Cap. Total Commission (base + upsell) shall not exceed [15] Points of the Funded Amount unless otherwise agreed in writing.

4.2 When Commission is paid. Commission is earned upon funding and is paid within [2] business days after the later of (i) Company disbursing the Funded Amount and (ii) Company's confirmation that the Merchant's initial remittance has cleared, subject to the clawback rights in Section 5.

4.3 Renewals. If a Merchant originally referred by Broker renews or takes an additional Transaction with Company while Broker remains active and the Merchant is within the protection period (Section 6), Company shall pay Broker a renewal Commission per Exhibit A.

4.4 No commission owed. No Commission is earned or payable on any application that is declined, withdrawn, expired, or not funded, or on any Transaction procured through Broker's breach, misrepresentation, or fraud.

4.5 Full settlement. The Commission is Broker's sole compensation. Broker is responsible for compensating its own sub-agents, if any, and Company has no obligation to any third party engaged by Broker.

5. CLAWBACK & CHARGEBACK

5.1 Clawback events. If, within [90] days of funding, any of the following occurs, Broker shall refund **100% of the Commission** paid on that Transaction: (a) the Merchant defaults on its first scheduled remittance (first-payment default); (b) the Transaction is rescinded, cancelled, or unwound; or (c) the Transaction was procured through Broker's or the Merchant's misrepresentation, fraud, or breach.

5.2 Method. Broker shall pay any clawback within [10] days of Company's written demand. Company may, at its option, offset any amount owed against Commissions otherwise payable to Broker on other Transactions.

6. DEAL PROTECTION & NON-CIRCUMVENTION

6.1 Merchant protection. A Merchant first submitted by Broker is protected to Broker for [90] days from the date of submission (and renews for each funded Transaction), provided Broker remains active and in good standing. During the protection period Company will credit Broker, and not a competing broker, for that Merchant.

6.2 Non-circumvention. During the Term and for [12] months after, neither Party shall knowingly circumvent the other with respect to a Merchant introduced under this Agreement in order to avoid the Commission or protection obligations herein.

7. REPRESENTATIONS & WARRANTIES

Broker represents and warrants, on an ongoing basis, that: (a) it is duly organized and authorized to enter this Agreement; (b) all information it submits is true, complete, and not altered; (c) it holds all licenses required for its activities; (d) it has obtained all Merchant and owner authorizations needed for the application; and (e) it has not and will not engage in any deceptive, fraudulent, or unfair act in connection with any Merchant or Transaction.

8. COMPLIANCE WITH LAWS

Broker shall comply with all applicable federal, state, and local laws and regulations, including without limitation those governing commercial financing disclosure, unfair or deceptive acts and practices (UDAP), telemarketing and consumer contact (TCPA, Do-Not-Call), privacy and data security (including GLBA safeguards), anti-money-laundering and OFAC screening, and any applicable licensing or commercial-financing-disclosure requirements. Broker shall not make any usurious or unlawful representation regarding any Transaction.

9. CONFIDENTIALITY & DATA

Each Party shall keep confidential, and use only for performing this Agreement, the other Party's non-public business, pricing, and Merchant information. Broker shall protect all Merchant personal and financial data with reasonable administrative, technical, and physical safeguards, and shall not sell or repurpose Merchant data. This section survives termination.

10. INDEMNIFICATION

Broker shall indemnify, defend, and hold harmless Company and its affiliates, officers, and agents from any claim, loss, liability, penalty, or expense (including reasonable attorneys' fees) arising out of (a) Broker's breach of this Agreement or its representations, (b) Broker's or its agents' acts, omissions, misrepresentations, or violations of law, or (c) any dispute between Broker and a Merchant or sub-agent. This section survives termination.

11. LIMITATION OF LIABILITY

Except for indemnification and confidentiality obligations, neither Party shall be liable for indirect, incidental, special, or consequential damages. Company's aggregate liability under this Agreement shall not exceed the total Commissions paid to Broker in the [6] months preceding the event giving rise to the claim.

12. TERM & TERMINATION

12.1 Term. This Agreement begins on the Effective Date and continues until terminated. Either Party may terminate for convenience upon [30] days' written notice, or immediately for the other Party's material breach, fraud, or insolvency.

12.2 Survival. Termination does not affect Commissions earned on Transactions funded before termination (subject to clawback), and Sections 5, 6, 9, 10, 11, and 13 survive.

13. DISPUTE RESOLUTION & GOVERNING LAW

This Agreement is governed by the laws of the State of [], without regard to conflict-of-laws rules. Any dispute shall be resolved by binding arbitration administered in [county, state] under the rules of the American Arbitration Association, and each Party waives any right to a jury trial and to participate in a class action. The prevailing Party is entitled to recover reasonable attorneys' fees and costs.

14. MISCELLANEOUS

This Agreement, with Exhibit A, is the entire agreement between the Parties and supersedes all prior understandings. It may be amended only in a writing signed by both Parties. Broker may not assign this Agreement without Company's written consent; Company may assign to an affiliate or successor. If any provision is unenforceable, the remainder stays in effect. Notices must be in writing to the addresses above. A signature delivered electronically or by counterpart is as valid as an original.

IN WITNESS WHEREOF, the Parties execute this Agreement as of the Effective Date.

COMPANY — DELT CAPITAL

BROKER / ISO

AUTHORIZED SIGNATURE

AUTHORIZED SIGNATURE

NAME & TITLE

NAME & TITLE

DATE

DATE

EXHIBIT A — COMMISSION SCHEDULE

Commissions are payable per Section 4 of the Agreement. One (1) Point = 1% of the Funded Amount. Complete the applicable rows below; blank rows may be struck through.

PRODUCT / SCENARIO	BASE COMMISSION (POINTS)	UPSELL SHARE OF SPREAD	MAX TOTAL (POINTS)
Merchant Cash Advance — new	[8-12]	[50]%	[15]
Revenue-based / term — new			
Renewal / additional funding			
Other:			

TERM	VALUE
Commission payment timing (business days after funding & first clear)	[2]
Clawback window (days from funding)	[90]
Clawback refund %	[100]%
Merchant protection period (days)	[90]
Payment method (ACH / wire / check)	

COMPANY — AUTHORIZED SIGNATURE & DATE

BROKER / ISO — AUTHORIZED SIGNATURE & DATE